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VILLAGE AT LEDGE STONE DESIGN GUIDELINES VERSION 2.0

ADOPTED BY VILLAGE AT LEDGE STONE REVIEWER:

290 EAST BUSH, INC., a Texas corporation

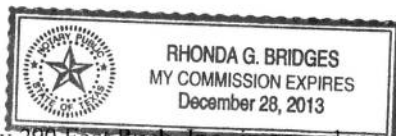
By: Michael L. Schoenfeld
Michael L. Schoenfeld, Vice President

STATE OF TEXAS §

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COUNTY OF HAYS §

This instrument was acknowledged before me on the 29th day of December, 2011, by Michael L. Schoenfeld, Vice President of 290 East Bush, Inc., a Texas corporation, on behalf of said corporation.



Rhonda G. Bridges
Notary Public, State of Texas

Adopted by 290 East Bush, Inc., in accordance with Section 6.05(b) of Master Covenant for Village At Ledge Stone recorded under Document No. 06034956 (Vol. 3053, Pg 816), Official Public Records of Hays County, Texas, as amended (the "Covenant"). In accordance with Section 6.05(b) of the Covenant, these Design Guidelines may be amended from time to time by the Village at Ledge Stone Reviewer. All prior versions of these Design Guidelines and amendments thereto are hereby amended, restated and replaced in their entirety. All previously approved Improvements approved under prior versions of the Design Guidelines are still deemed approved and not impacted by these Design Guidelines.

Introduction

Any notice or information required to be submitted to Village at Ledge Stone Reviewer under these Design Guidelines hereunder will be submitted to the Property Owner's Association Management Company.

Background

Village at Ledge Stone is a master planned community located in Hays County, Texas. The community consists of Development Areas which are subject to the terms and provisions of the Village at Ledge Stone Master Covenant, recorded in the Official Public Records of Hays County, Texas (the "**Covenant**"), and a Development Area Declaration for each particular Development Area (the "**Development Area Declaration**"). The Covenant and each Development Area Declaration includes provisions governing the construction of Improvements and standards of maintenance, use and conduct for the preservation of the Village at Ledge Stone community.

Village at Ledge Stone Reviewer and Review Authority

Article VI of the Covenant includes procedures and criteria for the construction of Improvements within the Village at Ledge Stone community. Each Development Area Declaration provides that any and all Improvements must be erected, placed, constructed, painted, altered, modified or remodeled in strict compliance with the requirements of the Design Guidelines, and both the Covenant and each Development Area Declaration provide that no Improvements may be constructed without the prior written approval of the Village at Ledge Stone Reviewer.

The Village at Ledge Stone Reviewer consists of members who have been appointed by 290 East Bush, Inc. (the "**Declarant**"). As provided in Article VI of the Declaration, Declarant has a substantial interest in ensuring that Improvements within the Village at Ledge Stone development maintain and enhance Declarant's reputation as a community developer and do not impair Declarant's ability to market and sell all or any portion of the community, and as a consequence thereof, the Village at Ledge Stone Reviewer acts solely in Declarant's interest and shall owe no duty to any homebuilders, Owners or the Village at Ledge Stone Property Owners Association, Inc (the "**Association**").

Unless alternate Design Guidelines are adopted for additional Development Areas, these Design Guidelines will apply to each Development Area made subject to the Covenant. These Design Guidelines will apply only to Lots and Condominium Units within a Development Area which will be used for residential purposes.

Governmental Requirements

Governmental ordinances and regulations are applicable to all Lots and Condominium Units within the Village at Ledge Stone. It is the responsibility of each Owner to obtain all necessary permits and inspections. Compliance with these Design Guidelines is not a substitute for compliance with the applicable ordinances and regulations. Please be advised that these Design Guidelines do not list or describe each requirement which may be applicable to a Lot or

Condominium Unit within the community. Each Owner is advised to review all encumbrances affecting the use and improvement of their Lot or Condominium Unit prior to submitting plans to the Village at Ledge Stone Reviewer for approval. Furthermore, approval by the Village at Ledge Stone Reviewer should not be construed by the Owner that any Improvement complies with the terms and provisions of all encumbrances which may affect the Owner's Lot or Condominium Unit. Certain encumbrances may benefit parties whose interests are not addressed by the Village at Ledge Stone Reviewer.

The Village at Ledge Stone Reviewer shall bear no responsibility for ensuring plans submitted to the Village at Ledge Stone Reviewer comply with any applicable building codes, zoning regulation or other government requirements. It is the responsibility of the Owner to secure any required governmental approvals prior to construction on such Owner's Lot or Condominium Unit.

Interpretation

In the event of any conflict between these Design Guidelines and the Development Area Declaration, the Development Area Declaration shall control. Capitalized terms used in these Design Guidelines and not otherwise defined in this document shall have the same meaning as set forth in the Development Area Declaration.

Amendments

The Village at Ledge Stone Reviewer may amend these Design Guidelines. All amendments shall become effective upon recordation in the Official Public Records of Hays County, Texas. Amendments shall not apply retroactively so as to require modification or removal of work already approved and completed or approved and in progress. It is the responsibility of each Owner to ensure that they have the most current edition of the Design Guidelines and every amendment thereto.

Architectural Review Process

Objective

The objective of the review process is to promote aesthetic harmony within the Village at Ledge Stone community by providing for compatibility of specific designs with surrounding buildings, the environment and the topography. The review process strives to maintain objectivity and sensitivity to the individual aspects of design.

Review Process

Requests for approval of proposed construction, landscaping, or exterior modifications must conform to a two-stage review process described in the "Plan Submittal" section of these Design Guidelines set forth below.

Responsibility for Compliance

An applicant is responsible for ensuring that all of the applicant's representatives, including the applicant's architect, engineer, contractors, subcontractors, and their agents and employees, are aware of these Design Guidelines, the Covenant, each applicable Development Area Declaration, and all requirements imposed by the Village at Ledge Stone Reviewer as a condition of approval.

Inspection

Upon completion of all approved work, the Owner must notify the Village at Ledge Stone Reviewer. The Village at Ledge Stone Reviewer may inspect the work at any time to verify conformance with the approved submittals.

Architectural and Aesthetic Standards

Aesthetic Appeal

The Village at Ledge Stone Reviewer may disapprove the construction or design of any Improvements on purely aesthetic grounds. Any prior decisions of the Village at Ledge Stone Reviewer regarding matters of design or aesthetics shall not be deemed to have set a precedent if the Village at Ledge Stone Reviewer feels that the repetition of such actions would have any adverse effect on the community.

Prohibited Elements

The following architectural elements are prohibited within Village at Ledge Stone unless expressly approved in advance and in writing by the Village at Ledge Stone Reviewer:

Roofs

- Predominantly flat roofs.
- Roofs with pitches too steep or too shallow for the style of the home.
- Shed roofs except as incidental to the main roof.

Design Elements

- Yard art visible from street or adjoining Lot or Condominium Unit.
- Stove pipe chimneys.
- Random roof penetrations, vents or skylights facing the street.
- White or bubble skylights.
- Mirrored glass.

Materials and Colors

- Wood siding (wood siding accents may be permitted if approved by the Village at Ledge Stone Reviewer).
- Vivid, inappropriate colors.

Height and Views

Unless otherwise approved in advance by the Village at Ledge Stone Reviewer, no building or residential structure may exceed thirty-five feet (35') in height (exclusive of chimneys and ventilators) as measured according to the following definition: the vertical distance between the finished floor elevation at any point within the structure and the highest ridge, peak, or gable of a roof, excluding chimneys. In addition, the height of any eave on any structure may not exceed thirty-five feet (35') above the natural grade at any point on the exterior wall of the residence. The Village at Ledge Stone Reviewer has the authority to withhold its approval of a structure's height notwithstanding the previous provisions if the Village at Ledge Stone Reviewer determines that the proposed height is not compatible with adjacent structures or is not responsive to existing or anticipated structure heights on lots located above or below the lot on which the proposed residence will be constructed.

Views are neither guaranteed, preserved, nor protected within the Village at Ledge Stone.

Square Footage

For the purpose of calculating total square footage, open or screened porches, terraces, patios, decks, driveways, garages, storage facilities and walkways shall be excluded. Other detached accessory uses such as cabanas or garages are permitted, and will not count toward the minimum square footage requirement. The calculation of square feet shall be measured from outside brick to outside brick.

The second story floor area of any residence located on a Lot or Condominium Unit shall not exceed one hundred percent (100%) of the heated/air conditioned first floor area of the residence plus the garage. In addition, all two story interior spaces, irrespective of whether such areas are heated or cooled, shall be included in the second floor area for the purpose of determining compliance with this paragraph.

In order to determine compliance with square footage requirements, plans submitted for review shall clearly indicate:

- the heated/air conditioned space of each floor.
- the total heated/air conditioned space of the residence.
- the non-heated/air conditioned space of each floor.
- the total non-heated/air conditioned space of the residence.

Minimum & Maximum Square Footage

Unless approved by the Village at Ledge Stone Reviewer on a site-specific basis, the minimum and maximum heated / air conditioned square footage for each residence is as follows:

Condominiums

The minimum is 1,800 square feet and the maximum is 3,200 square feet.

Lots

The minimum is 2,500 square feet and the maximum is 4,200 square feet.

Masonry

The Village at Ledge Stone Reviewer encourages the restrained use of a variety of materials, which can add textural richness to the structure. The goal is to have houses constructed with materials that are compatible with the general color and texture of the surrounding landscape.

Unless otherwise approved by the Village at Ledge Stone Reviewer, grey brick is prohibited.

White stucco should be used only as an accent color; large expanses are prohibited.

Cementitious siding products (e.g., "Hardi-Plank" or "Hardi-Panel") are not considered brick, stone, cultured stone or stucco and cannot be used to satisfy the requirements of this section. Roofs, eaves, soffits, windows, gables, doors, garage doors and trim work are not required to be constructed of brick, stone, cultured stone or stucco.

The first floor front and side exteriors of each residence must be constructed of brick, stone, cultured stone, stucco or other materials approved by the Village at Ledge Stone Reviewer. Cementitious siding products, e.g., "Hardi-Plank" or "Hardi-Panel", may comprise up to 25% of the first floor front elevation. The front, side and rear elevations of the second floor of each residence may be constructed of brick, stone, cultured stone, stucco, or other cementitious siding products approved by Village at Ledge Stone Reviewer.

Building Materials

All building materials must be approved in advance by the Village at Ledge Stone Reviewer, and only new building materials (except for antique brick) may be used for constructing any Improvements. All projections from a dwelling or other structure, including but not limited to chimney flues, vents, gutters, downspouts, porches, railings and exterior stairways must, unless otherwise approved by the Village at Ledge Stone Reviewer, match the color of the surface from which they project. No highly reflective finishes (other than glass, which may not be mirrored) may be used on exterior surfaces (other than surfaces of hardware fixtures), including, without limitation, the exterior surfaces of any Improvements.

Roofs

The pitch, color and composition of all roofs and roof materials must be approved in writing by the Village at Ledge Stone Reviewer. The pitch of the primary roofing surface, excluding accessory porches, must be a minimum of 6:12 and each roof must be constructed of composition shingles with a rating of 25 years or greater provided however, that all such roofing materials shall conform to applicable local, FHA and VA requirements. Roof vents and other penetrations shall not be on the front of any home, must be as unobtrusive as possible and must match the principal color of the roof. All material incorporated into any roof must be approved in advance by the Village at Ledge Stone Reviewer.

In addition, roofs of buildings may constructed with “**Energy Efficiency Roofing**” with the advance written approval of the Village at Ledge Stone Reviewer . For the purpose of this section, “Energy Efficiency Roofing” means shingles that are designed primarily to: (a) be wind and hail resistant; (b) provide heating and cooling efficiencies greater than those provided by customary composite shingles; or (c) provide solar generation capabilities. The Village at Ledge Stone Reviewer will not prohibit an Owner from installing Energy Efficient Roofing provided that the Energy Efficient Roofing shingles: (i) resemble the shingles used or otherwise authorized for use within the community; (ii) are more durable than, and are of equal or superior quality to, the shingles used or otherwise authorized for use within the community; and (iii) match the aesthetics of adjacent property. An Owner who desires to install Energy Efficient Roofing will be required to comply with the architectural review and approval procedures set forth the Covenant and applicable Development Area Declaration. In conjunction with any such approval process, the Owner should submit information which will enable the Village at Ledge Stone Reviewer to confirm the criteria set forth in this section. Any other type of roofing material shall be permitted only with the advance written approval of the Village at Ledge Stone Reviewer .

Garages

A minimum of two (2) full-size automobiles must be able to fit in all garages. The interior of all garages must be completely finished with sheetrock, textured and painted.

Driveways

The design of all driveways must be approved in advance by the Village at Ledge Stone Reviewer.

The minimum width of a driveway is twelve feet (12') and the maximum width of a driveway is eighteen feet (18') except for the flair necessary to connect to the garage.

All driveways shall be surfaced with brushed concrete. Curbs shall be saw cut within all approaches. Exposed aggregate and asphalt driveways are prohibited. Driveways shall intersect the street at as close to 90 degrees as possible. All driveways must be at least two and one-half feet (2 ½') from adjacent Lot and Condominium Unit property lines.

Driveways must allow entry by standard mid-size vehicles without “bottoming out” in the approach area between the curb and property line as well as the driveway area between the property line and the garage.

If the driveway is raised significantly above finished grade (which will be determined by the Village at Ledge Stone Reviewer is its sole and absolute discretion), the exposed sides of the driveway must be underpinned and screened with landscaping approved in advance by the Village at Ledge Stone Reviewer.

Where driveways conflict with pedestrian walks, curbs must be saw cut and handicap ramps installed. Handicap ramps must be constructed to comply with all Texas Department of Licensing and Regulation Architectural Barriers Texas Accessibility Standards and American Disabilities Act (ADA) requirements.

Sidewalks

Sidewalks shall be surfaced with brushed concrete. A four feet (4') wide sidewalk is required along the front of the following: Lots 2-62, Section 1, Block A. Sidewalks may not exceed one and one-half percent (1 ½%) cross slope. All sidewalks must be a minimum of four feet (4') from the back of the curb and comply with all Texas Department of Licensing and Regulation ("TDLR") Architectural Barriers Texas Accessibility Standards.

Exterior Lighting

Exterior lighting will be kept to a minimum, but consistent with reasonable security practices.

No exterior light whose direct source is visible from a street or neighboring property or which produces excessive glare to pedestrian or vehicular traffic will be allowed. Furthermore, exterior lighting must observe 90 degree cutoff requirements on all fixtures and must be approved in advance by the Village at Ledge Stone Reviewer and must also comply with the City of Dripping Springs Lighting Ordinance # 1260.

Use of other than white or color corrected high intensity lamps and exterior lights will not be allowed. Holiday lighting is an exception, but is expected to be removed no longer than 14 days from the applicable holiday. Sodium, mercury vapor, or bare HID yard lights are not allowed. Lighting kits may be used for walkways (not sidewalks) and landscaping only, must be spaced no closer than 5 ft. apart and must be approved by the Village at Ledge Stone Reviewer. Solar powered lighting kits of good quality may be used if approved by the Village at Ledge Stone Reviewer and the Owner is required to maintain the solar power lighting kits in good condition and repair.

Accessory Buildings

Accessory buildings, including pool cabanas, detached garages and guesthouses, shall be to be harmonious with and include the use of similar materials and with the same quality of construction as the primary residential structure and must be approved in advance by the Village at Ledge Stone Reviewer.

Additional Accessory Building Guidelines

1. General 100 sq. ft. size limit (no wider than 10' or longer than 12') and 10 ft. height limit at peak.
2. Minimum 6 to 12 pitch (results in 7.5' wall height on a 10' wide building).
3. Must be placed within the build lines of applicable lot
4. Siding (hardi-plank), trim and roofing materials must, in color and style, match those materials used on the home (no metal sheds).
5. Landscape screening is required on the perimeter sides that are visible from adjoining properties (typically this will be the sides that face the rear of the property and the opposing property line and will be determined by the Village at Ledge Stone Reviewer based on the placement of the building). Windows are required on perimeter side that faces opposing property line.

6. Wiring for internal electric lighting must be run underground to the building. No external lighting will be allowed.

Antennas

Except as expressly provided below, no exterior radio or television antennae or aerial or satellite dish or disc, shall be erected, maintained or placed on a Lot without the prior written approval of the Village at Ledge Stone Reviewer ; provided, however, that:

- (i) an antenna designed to receive direct broadcast services, including direct-to-home satellite services, that is one meter or less in diameter; or
- (ii) an antenna designed to receive video programming services via multipoint distribution services, including multi-channel multipoint distribution services, instructional television fixed services, and local multipoint distribution services, that is one meter or less in diameter or diagonal measurement; or
- (iii) an antenna that is designed to receive television or radio broadcast signals;

(collectively, (i) through (iii) are referred to herein as the “**Permitted Antennas**”) will be permitted subject to reasonable requirements as to location and screening as may be set forth in rules adopted by the Village at Ledge Stone Reviewer , consistent with applicable law, in order to minimize obtrusiveness as viewed from streets and adjacent property. Declarant and/or the Association will have the right, but not the obligation, to erect an aerial, satellite dish, or other apparatus for a master antenna, cable, or other communication system for the benefit of all or any portion of the Property.

A Permitted Antenna may be installed solely on the Owner's Lot and Condominium Unit and shall not encroach upon any street, Common Area, or any other portion of the Property. A Permitted Antenna shall be installed in a location on the Lot or Condominium Unit from which an acceptable quality signal can be obtained and where least visible from the street and the Property, other than the Lot or Condominium Unit. In order of preference, the locations of a Permitted Antenna which will be considered least visible by the Village at Ledge Stone Reviewer are as follows:

- (i) Attached to the back of the principal single-family residence constructed on the Lot or Condominium Unit, with no part of the Permitted Antenna any higher than the lowest point of the roofline and screened from view of adjacent Lots or Condominium Units and the street; then
- (ii) Attached to the side of the principal single-family residence constructed on the Lot or Condominium Unit, with no part of the Permitted Antenna any higher than the lowest point of the roofline and screened from view of adjacent Lots and the street.

The Village at Ledge Stone Reviewer may, from time to time, modify, amend, or supplement the rules regarding installation and placement of Permitted Antennas.

Flags

Approval. An Owner is permitted to display the flag of the United States of America, the flag of the State of Texas, or an official or replica flag of any branch of the United States Military, (“**Permitted Flag**”) and permitted to install a flagpole no more than five feet (5’) in length affixed to the front of a residence near the principal entry or affixed to the rear of a residence (“**Permitted Flagpole**”). Only two (2) permitted Flagpoles are allowed per residence. A Permitted Flag or Permitted Flagpole need not be approved in advance by the Village at Ledge Stone Reviewer . Approval by the Village at Ledge Stone Reviewer is required prior to installing vertical freestanding flagpoles installed in the front or back yard area of any Lot (“**Freestanding Flagpole**”).

Installation, Display and Approval Conditions. Unless otherwise approved in advance and in writing by the Village at Ledge Stone Reviewer , Permitted Flags, Permitted Flagpoles and Freestanding Flagpoles, installed in accordance with the Flagpole Application, must comply with the following:

- No more than one (1) Freestanding Flagpole OR no more than two (2) Permitted Flagpoles are permitted per Lot or Condominium Unit, on which only Permitted Flags may be displayed;
- Any Permitted Flagpole must be no longer than five feet (5') in length and any Freestanding Flagpole must be no more than twenty feet (20') in height;
- Any Permitted Flag displayed on any flagpole may not be more than three feet in height by five feet in width (3'x5');
- With the exception of flags displayed on Common Area and any Lot or Condominium Unit which is being used for marketing purposes by a builder, the flag of the United States of America must be displayed in accordance with 4 U.S.C. Sections 5-10 and the flag of the State of Texas must be displayed in accordance with Chapter 3100 of the Texas Government Code;
- The display of a flag, or the location and construction of the flagpole must comply with all applicable zoning ordinances, easements and setbacks of record;
- Any flagpole must be constructed of permanent, long-lasting materials, with a finish appropriate to the materials used in the construction of the flagpole and harmonious with the dwelling;
- A flag or a flagpole must be maintained in good condition and any deteriorated flag or deteriorated or structurally unsafe flagpole must be repaired, replaced or removed;
- Any flag may be illuminated by no more than one (1) halogen landscaping light of low beam intensity which shall not be aimed towards or directly affect any neighboring property; and
- Any external halyard of a flagpole must be secured so as to reduce or eliminate noise from flapping against the metal of the flagpole.

Solar Energy Device

Solar Energy Devices may be installed with the advance written approval of the Village at Ledge Stone Reviewer .

Application. To obtain Village at Ledge Stone Reviewer approval of a Solar Energy Device, the Owner shall provide the Village at Ledge Stone Reviewer with the following information: (i) the proposed installation location of the Solar Energy Device; and (ii) a description of the Solar Energy Device, including the dimensions, manufacturer, and photograph or other accurate depiction (the “**Solar Application**”). A Solar Application may only be submitted by an Owner unless the Owner’s tenant provides written confirmation at the time of submission that the Owner consents to the Solar Application. The Solar Application shall be submitted in accordance with the provisions of the Covenant.

Approval Process. The Village at Ledge Stone Reviewer will review the Solar Application in accordance with the terms and provisions of the Covenant. The Village at Ledge Stone Reviewer will approve a Solar Energy Device if the Solar Application complies with Approval Conditions paragraph below **UNLESS** the Village at Ledge Stone Reviewer makes a written determination that placement of the Solar Energy Device, despite compliance with Approval Conditions paragraph, will create a condition that substantially interferes with the use and enjoyment of the Property within the community by causing unreasonable discomfort or annoyance to persons of ordinary sensibilities. The Village at Ledge Stone Reviewer’s right to make a written determination in accordance with the foregoing sentence is negated if all Owners of Lots or Condominium Units immediately adjacent to the Owner/applicant provide written approval of the proposed placement. Notwithstanding the foregoing provision, a Solar Application submitted to install a Solar Energy Device on property owned or maintained by the Association or property owned in common by members of the Association will not be approved despite compliance with the Approval Conditions paragraph below. Any proposal to install a Solar Energy Device on property owned or maintained by the Association or property owned in common by members of the Association must be approved in advance and in writing by the Board, and the Board need not adhere to this policy when considering any such request.

Approval Conditions. Unless otherwise approved in advance and in writing by the Village at Ledge Stone Reviewer , each Solar Application and each Solar Energy Device to be installed in accordance therewith must comply with the following:

- The Solar Energy Device must be located on the roof of the residence located on the Owner’s Lot or Condominium Unit, entirely within a fenced area of the Owner’s Lot or Condominium Unit, or entirely within a fenced patio located on the Owner’s Lot or Condominium Unit. If the Solar Energy Device will be located on the roof of the residence, the Village at Ledge Stone Reviewer may designate the location for placement unless the location proposed by the Owner increases the estimated annual energy production of the Solar Energy Device, as determined by using a publicly available modeling tool provided by the National Renewable Energy Laboratory, by more than 10 percent above the energy production of the Solar Energy Device if installed in the location designated by the Village at Ledge Stone Reviewer . If the Owner desires to contest the alternate location proposed by the Village at Ledge Stone Reviewer, the Owner should submit information to the Village at Ledge Stone Reviewer which

demonstrates that the Owner's proposed location meets the foregoing criteria. If the Solar Energy Device will be located in the fenced area of the Owner's Lot or Condominium Unit or patio, no portion of the Solar Energy Device may extend above the fence line.

- If the Solar Energy Device is mounted on the roof of the principal residence located on the Owner's Lot or Condominium Unit, then: (A) the Solar Energy Device may not extend higher than or beyond the roofline; (B) the Solar Energy Device must conform to the slope of the roof and the top edge of the Solar Device must be parallel to the roofline; (C) the frame, support brackets, or visible piping or wiring associated with the Solar Energy Device must be silver, bronze or black.

Exception. During the Development Period, the Village at Ledge Stone Reviewer need not adhere to the terms and provisions of this section and may approve, deny, or further restrict the installation of any Solar Device.

Miscellaneous

Address Markers and Mailboxes

Address markers must be readily visible from the street. The Village at Ledge Stone Reviewer shall adopt location and design specifications for address markers. The painting of addresses on the curb is not allowed. Centralized mailbox units have been provided in the community for mail pick-up and delivery.

Barbecue Grills

Freestanding barbecue grills are permitted only if they are stored and used in the rear yard space of the Lot or Condominium Unit and are not visible from the street fronting the home. The use of built-in natural gas or propane grills is strongly encouraged.

Landscape Guidelines

Detailed landscape plans for each Lot and Condominium Unit must be submitted to the Village at Ledge Stone Reviewer for consideration at least thirty (30) days before completion of the residence. Upon written request, however, the Village at Ledge Stone Reviewer may waive the requirement of landscape plans for any Lot or Condominium Unit if the builder uses plans previously approved by the Village at Ledge Stone Reviewer for another Lot or Condominium Unit. There shall be no revisions made to approved plans without submission to, and approval by, the Village at Ledge Stone Reviewer of the revised plans. All introduced vegetation shall be trees, shrubs, vines, ground covers, seasonal flowers or sodded grasses which are commonly used in Central Texas for landscaping purposes and which are approved by the Village at Ledge Stone Reviewer. An emphasis should be placed on utilizing native plants that are drought tolerant as well as deer resistant. Landscaping in accordance with the approved plans shall be completely installed prior to occupancy of a Lot or Condominium Unit. Extensions to the time limit may be granted by the Village at Ledge Stone Reviewer but may require a deposit. The approved plans shall comply with the Landscaping Specifications set forth on [Attachment 3](#). After installation, landscaping (including temporary landscaping) shall be properly maintained at all times. Any Owner who wishes to plant one or more gardens upon their Lot or Condominium Unit must obtain the approval of the Village at Ledge Stone Reviewer of any such garden.

Unless otherwise approved in advance by the Village at Ledge Stone Reviewer, landscaping of new homes must be installed within 30 days of completion. Modifications of existing landscaping must be completed within 21 days of commencement.

The use of rock or crushed rock as a ground cover shall not be permitted unless approved in advance by the Village at Ledge Stone Reviewer.

Vegetative screening for above ground utility connections visible from the street or adjacent properties is highly recommended.

The Village at Ledge Stone Reviewer reserves the right to require additional landscaping for pools, cabanas and other hardscape elements that may be constructed after completion of the residence and associated landscaping.

Hardscape elements in the landscaping must be in scale with the home and associated structures. Sculptures and fountains must seek the approval of the Village at Ledge Stone Reviewer.

Irrigation

Full yard irrigation systems are required on all Lots and Condominium Units. All irrigation systems must be installed and maintained by a Texas Commission on Environmental Quality ("TCEQ") licensed irrigator. Backflow prevention devices are required and must be installed, inspected, and maintained in accordance with TCEQ and any other applicable regulations.

Rain barrels or rainwater harvesting systems (a "Rainwater Harvesting System") may be installed with the advance written approval of the Village at Ledge Stone Reviewer .

Application. To obtain Village at Ledge Stone Reviewer approval of a Rainwater Harvesting System, the Owner shall provide the Village at Ledge Stone Reviewer with the following information: (i) the proposed installation location of the Rainwater Harvesting System; and (ii) a description of the Rainwater Harvesting System, including the color, dimensions, manufacturer, and photograph or other accurate depiction (the “**Rain System Application**”). A Rain System Application may only be submitted by an Owner unless the Owner’s tenant provides written confirmation at the time of submission that the Owner consents to the Rain System Application.

Approval Process. The decision of the Village at Ledge Stone Reviewer will be made in accordance with the Covenant. A Rain System Application submitted to install a Rainwater Harvesting System on property owned by the Association or property owned in common by members of the Association will not be approved. Any proposal to install a Rainwater Harvesting System on property owned by the Association or property owned in common by members of the Association must be approved in advance and in writing by the Board, and the Board need not adhere to this policy when considering any such request.

Approval Conditions. Unless otherwise approved in advance and in writing by the Village at Ledge Stone Reviewer, each Rain System Application and each Rain System Device to be installed in accordance therewith must comply with the following:

The Rain System Device must be consistent with the color scheme of the residence constructed on the Owner’s Lot or Condominium Unit, as reasonably determined by the Village at Ledge Stone Reviewer .

The Rain System Device does not include any language or other content that is not typically displayed on such a device.

The Rain System Device is in no event located between the front of the residence constructed on the Owner’s Lot or Condominium Unit and any adjoining or adjacent street.

There is sufficient area on the Owner’s Lot or Condominium Unit to install the Rain System Device, as reasonably determined by the Village at Ledge Stone Reviewer .

If the Rain System Device will be installed on or within the side yard of a Lot or Condominium Unit, or would otherwise be visible from a street, common area, or another Owner’s Lot or Condominium Unit, the Village at Ledge Stone Reviewer may regulate the size, type, shielding of, and materials used in the construction of the Rain System Device. See Guidelines paragraph below for additional guidance.

Guidelines. If the Rain System Device will be installed on or within the side yard of a Lot or Condominium Unit, or would otherwise be visible from a street, common area, or another Owner’s Lot or Condominium Unit, the Village at Ledge Stone Reviewer may regulate the size, type, shielding of, and materials used in the construction of the Rain System Device. Accordingly, when submitting a Rain Device Application, the application should describe methods proposed by the Owner to shield the Rain System Device from the view of any street, common area, or another Owner’s Lot or Condominium Unit. When reviewing a Rain System Application for a Rain System Device that will be installed on or within the side yard of a Lot or Condominium Unit, or would otherwise be visible from a street, Common Area, or another

Owner's Lot or Condominium Unit, any additional regulations imposed by the Village at Ledge Stone Reviewer to regulate the size, type, shielding of, and materials used in the construction of the Rain System Device, may not prohibit the economic installation of the Rain System Device, as reasonably determined by the Village at Ledge Stone Reviewer .

Landscape Inspection

The Village at Ledge Stone Reviewer may, upon the Owner's completion of the installation of landscaping, conduct an on-site inspection of the property to ensure compliance with the approved plan.

Drainage

Responsibility for proper site drainage rests with the Owner. There shall be no interference with the established drainage patterns except by Declarant, unless adequate provisions are made for proper drainage and such provisions have been certified by a professional engineer and approved in advance by the Village at Ledge Stone Reviewer. No area drains are allowed to extend through the curb, and any area drain opening must be behind the curb within the Lot or Condominium Unit and cannot extend to the street or right-of-way.

Fencing and Walls

Good Neighbor style six foot (6') tall wood fencing with 2 3/8" vertical steel posts is the only type of fencing allowed between property lines. Good Neighbor fencing is defined as wood fencing that alternates the side panel faces every eight feet (8'). Shadowbox or "Pallet" type fencing is not allowed.

Side yard fencing must be six foot (6') tall wood fencing with 2 3/8" vertical steel posts. The connecting point of the side yard fence and the house must be set back a minimum of fifteen feet (15') from the front corner of the house and a minimum of ten feet (10') from the rear corner of the house. All side yard fences must be installed so that they are even and in a straight line between houses. All fencing along any street must be constructed so that solid pickets face the street.

Fences may only be stained upon approval from the Village at Ledge Stone Reviewer using stain approved by the Village at Ledge Stone Reviewer. The Village at Ledge Stone Reviewer may, in its sole discretion, prohibit the construction of any proposed fence, or specify the materials of which said proposed fence must be constructed.

Fencing of front yards is not permitted. Solid walls enclosing an entire lot or site are not permitted.

All retaining wall plans over four feet (4') tall or within any right-of-way must be submitted to the Village at Ledge Stone Reviewer and constructed in accordance with stamped engineered plans by a licensed engineer. Materials used for retaining walls must be approved by the Village at Ledge Stone Reviewer.

Plans submitted for fences or walls must be drawn on an accurate copy of the plot plan.

Unless otherwise approved in writing at the sole discretion of the Village at Ledge Stone Reviewer, fencing on all lots backing up to a greenbelt must consist of a six foot tall black ornamental iron fence along the property line adjacent to the greenbelt. Particularly, Lots 3-62, Block A; Lots 1-11, Block C; Lot 1, Block B; Lot 26, Block B; Units 34-61, 63-81, and 92-131 and any other lots backing up to the greenbelt. Gates or access of any kind is not allowed directly into the greenbelts from the back yard of any Lot or Condominium Unit. No finials of any kind are allowed.

The side yard fence at the point where it connects to the house must be setback a minimum of fifteen feet (15') from the front corner of the house and a minimum of ten feet (10') from the back corner of the house. All side yard fences must be installed so that they are even and in a straight line between houses. Side yard fences must be installed so that all pickets are facing toward the street and fence rails are not seen from the street.

Swimming Pool / Spa / Hot Tub Plans

Swimming pools and accompanying spas shall be in-ground, or a balanced cut and fill, and shall be designed to be compatible with the site and the dwelling. All exposed concrete on "Infinity Edge" swimming pools must be properly screened through the use of landscaping and no more than three (3) feet of exposed concrete may be visible. Self-contained above-ground hot tubs require approval by the Village at Ledge Stone Reviewer. Screening, fencing, security, and maintenance is required of all swimming pools, spas and hot tubs. Additional fencing, if any is proposed in addition to the yard fencing, and / or walls around the swimming pool, spa or hot tub must be approved in advance by the Village at Ledge Stone Reviewer and integrated into the design of the dwelling and site. Fences must meet all governmental regulations and no pool, spa, hot tub or other similar water containing basin shall be filled with water until proper fencing is installed.

The swimming pool, spa or hot tub plan must be drawn on a copy of an accurate site plan and shall include specific indications of distances from the water containing basin(s) and surrounding slab walks to the lot lines and building setbacks.

The Village at Ledge Stone Reviewer requires submission of an application in conjunction with the review of any proposed swimming pool, spa or hot tub and may require that additional information be submitted with the application.

Unless otherwise expressly approved by the applicable governmental agency or utility service provider, backwash from a swimming pool, spa or hot tub drain with a backwash filtering system must be contained within the Lot on which the swimming pool, spa or hot tub has been constructed and is not permitted to be discharged into any street, adjoining Lot or drainage easement. A swimming pool, spa or hot tub drain with a backwash filtering system may not be discharged into the sanitary sewer without the advance written approval of the Village at Ledge Stone MUD operator. Additional connection and / or service and permit fees may be required to be paid to the MUD. A construction deposit is required for all swimming pool, spa or hot tub construction. No access across another Lot or greenbelt / open space area for the purpose of building or maintaining a swimming pool, spa or hot tub is permitted without the prior written

approval of the other property owner or the Village at Ledge Stone Reviewer in the case of greenbelts / open spaces.

Playscapes and Sport Courts

Playscapes and Sport Courts must be approved in advance by the Village at Ledge Stone Reviewer. Such improvements must take into consideration location and screening so as to minimize the visual and audio impact of the facility on adjacent properties. Playscapes, trampolines and Sport Courts may not be lighted. Plans for Playscapes and Sport Courts must be drawn on an accurate copy of the site plan and must include proposed screening. Special attention will be placed on color schemes and on the visibility of the equipment from the street and neighboring Lots.

Tennis courts may not be constructed on Lots or Condominium Units.

Erosion Control and Construction Regulations

It is the responsibility of all Owners and / or contractors to adhere to State and Federal stormwater runoff protection and prevention requirements that may be applicable to their construction activities and to obtain proper permits as may be required. The following restrictions shall apply to all construction activities within Village at Ledge Stone. Periodic inspections by a representative of the Village at Ledge Stone Reviewer or the Hays County Municipal Utility District No. 4 may take place in order to identify non-complying construction activities. If items identified as not complying with the regulations are not remedied in a timely manner, fines may be levied against the Owner.

It is the responsibility of the Owner to install erosion control measures prior to the start of construction and to maintain the measures throughout construction.

Silt fencing is required to be properly installed and maintained to protect the low sides of all disturbed areas, where stormwater will flow during construction. The purpose of the silt fence is to capture the sediment from the runoff prior to exiting the site. Built-up sediment must periodically be removed from the silt fence as it accumulates and any breach in the silt fencing must be repaired or replaced immediately.

If for any reason the silt fence is to be temporarily removed, the Homebuilder/Owner must contact the Village at Ledge Stone Reviewer prior to its removal.

Security

Neither the Declarant, the Association, nor the Village at Ledge Stone Reviewer will be responsible for the security of job sites during construction. If theft or vandalism occurs, the Owner should first contact the Hays County Sheriff's Department and then notify the Association's Management Company.

Construction Hours

Unless a written waiver is obtained from the Village at Ledge Stone Reviewer, construction may take place only during the following hours: Monday through Friday from 6:30 a.m. until 7:00 p.m., and on Saturdays from 8:00 a.m. until 6:00 p.m. Waivers may be given for the pouring of concrete slabs during the summer months.

There shall be no construction on the following holidays: New Year's Day, Easter, Memorial Day, July 4th, Labor Day, Thanksgiving Day, or Christmas Day.

Noise, Animals, Children

The use of radios, tape, CD or other electronic audio players by construction personnel must be restrained so as not to be heard from the street or adjoining lot.

Contractors and subcontractors may not bring children under 16 years of age or dogs to construction sites.

Material and Equipment Storage

All construction materials and equipment shall be neatly stacked, properly covered and secured. Any storage of materials or equipment shall be the Owner's responsibility and at their risk.

Owners and homebuilders may not disturb, damage or trespass on other lots or adjacent property.

Insurance

The Village at Ledge Stone Reviewer may require an Owner to procure adequate commercial liability insurance during construction naming the Association, the Declarant and the Village at Ledge Stone Reviewer as additional insureds, in an amount to be determined, from time to time by the Village at Ledge Stone Reviewer.

Site Cleanliness

During the construction period, each construction site shall be kept neat and shall be properly policed. Brightly colored construction fence must be installed before the start of construction on all side lot lines where a home is being constructed next to an existing occupied home.

Owners and Homebuilders shall clean up all trash and debris on the construction site. Trash and debris shall be removed from each construction site on a timely basis. The Village at Ledge Stone Reviewer will have the authority to require that one dumpster be provided to serve no more than four Lots or Condominium Units. In addition to any dumpster, a trash receptacle approved in advance by the Village at Ledge Stone Reviewer will be located on each lot during construction. Trash receptacles must be emptied periodically and will not be permitted to overflow.

Lightweight material, packaging, food waste and other items shall be covered or weighted down to prevent wind from blowing such materials off the construction site.

The dumping, burying or burning of trash is not permitted anywhere within Village at Ledge Stone.

When moving heavy equipment, precautions must be taken to prevent damage to pavement, curbs, and vegetation. Any damage will be charged to the Owner. Track loaders are not to be operated on paved or concrete surfaces

Mud, dirt and other construction debris tracked off the construction site must be cleaned on a daily basis. Skid steer loaders are not to be used to clean the streets by scraping them.

Sanitary Facilities

During construction, a temporary sanitary facility (chemical toilet) shall be provided and maintained within three (3) lots of the construction site.

Schedule of Fines

Listed below is the schedule of fines which may be assessed. **PLEASE BE ADVISED THAT FINES ARE NOT IN LIEU OF ANY COSTS CHARGEABLE AGAINST A HOMEBUILDER/OWNER/CONTRACTOR FOR REPAIRS OR RESTORATION.**

Schedule of Fines

Premature Clearing of Lot or Condominium Unit	\$500 per incident
Failure to install construction fence next to an occupied residence	\$150 plus \$25 per day
Construction without Village at Ledge Stone Reviewer Approval	\$500 per incident
No Chemical Toilet Provided	\$150 plus \$25 per day
Encroachment on Adjacent Properties	\$500 plus cost of repair
Damage to Streets, Curbs, Infrastructure	\$1,000 per location plus cost of repair
Miscellaneous Violation of Construction Rules	\$50 per day
Street cut charge	\$5,000 plus cost of restoration

Duration of Construction

Unless otherwise approved in writing by the Village at Ledge Stone Reviewer or unless otherwise addressed elsewhere herein, the following are the maximum periods of time allowed for construction of Improvements once construction commences. Delays caused by inclement weather may be added to the maximum construction time.

New residences - twelve months from the time the site is cleared and made ready for slab forms.

Landscaping - 30 days after commencement of construction.

Patios, decks, and gazebos – 45 days after commencement of construction

Home additions, swimming pools and spas – 60 days after commencement of construction

All other Improvements – 60 days after commencement of construction

Plan Submittals

New residential home construction within Village at Ledge Stone will utilize a two-stage review process.

PLAN BOOK, MATERIAL AND LANDSCAPE REVIEW

The applicant must first submit for approval plans for the home designs to be offered in the neighborhood including the exterior elevations and landscaping associated with each plan.

The Plan Book, Material, and Landscaping Review will require the submission of the following information:

- Floorplans
- Elevations of all sides of each home indicating
 - Brick Ledge (Max height of exposed concrete/underpinning is 24")
 - Roof pitch
 - Roof peak height above the foundation
 - Exterior materials- walls, roof, chimney
 - Window specifications
 - Chimney cap materials/design
 - Heated/air conditioned square footage of each floor and the total heated/air conditioned square footage
 - Non-heated/air conditioned spaces of each floor and the total non-heated/air conditioned space of the residence
- Material samples, including stone samples (colors and patterns), mortar colors, stucco colors, trim colors, roof materials and colors, and window materials and colors must be approved in advance by the Village at Ledge Stone Reviewer. The Village at Ledge Stone Reviewer reserves the right to request samples of all materials. **PLEASE BE ADVISED THAT PLAN BOOK AND MATERIAL REVIEW IS NOT FINAL APPROVAL. SPECIFICALLY, MATERIAL TO BE INCORPORATED INTO A RESIDENCE OR IMPROVEMENT IS NOT APPROVED FOR USE ON A PARTICULAR RESIDENCE OR IMPROVEMENTS UNTIL THE FINAL PLAN REVIEW FOR THE RESIDENCE AND/OR IMPROVEMENT HAS BEEN APPROVED BY THE VILLAGE AT LEDGE STONE REVIEWER.**
- Sample Landscaping Plan
 - General boundaries of turf areas with type of turf noted
 - General locations of all proposed plants
 - Listing of Materials Plan

FINAL PLAN REVIEW

A completed Final Plan Application (Attachment 1), must be submitted for review and approval to the Village at Ledge Stone Reviewer prior to the construction of any new residences on a Lot or Condominium Unit. The Final Plan Application must also include

all information required to be submitted as set forth on the application. In addition, if any changes are made to a landscaping plan previously submitted and approved by the Village at Ledge Stone Reviewer during the Plan Book, Material, and Landscape Review as applied to a particular lot, all changes must be approved in writing and in advance by the Village at Ledge Stone Reviewer

A completed Improvement Application (Attachment 2), must be submitted for review and approval to the Village at Ledge Stone Reviewer prior to the construction of any Improvements other than a new residence on a Lot or Condominium Unit. Improvements including, but are not limited to, storage sheds, home additions, fencing, fence relocation, fence staining, color changes to the exterior paint, basketball goals, playscapes, decks, arbors, gazebos, swimming pools, spas, hot tubs, playhouses, walls, hardscape improvements, landscaping and exterior alterations.

Attachments:	Attachment 1	Village at Ledge Stone: Final Plan Application
	Attachment 2	Village at Ledge Stone: Improvement Application
	Attachment 3	Village at Ledge Stone: Landscaping Specifications

ATTACHMENT 1
VILLAGE AT LEDGE STONE: FINAL PLAN APPLICATION



<http://www.ledgestoneaustin.com/residents.htm>
vlsr@ledgestoneaustin.com

Date: _____ Section: _____ Block: _____ Lot: _____

Address: _____ Builder: _____

Request Prepared By: _____

Plan #: _____ Elevation: _____ Garage Orientation: _____

Bedrooms: _____ Baths: _____ Square Footage of HVAC areas: _____

Masonry manufacturer: _____ Masonry color: _____

Masonry mortar color: _____

Stone manufacturer: _____ Stone color: _____

Stone mortar color: _____

Trim Color: _____ Siding Color: _____

Shingles: _____ Roof Pitch: _____

Fencing: Ornamental Iron / Good Neighbor / Side Yard Fence (Circle All Proposed)

Front Retaining Wall: Yes / No Deck: Yes / No Deck Material: _____

Attachment Checklist:

- **Plot Plan showing:**
 - **house layout with applicable setbacks and all Public Utility Easements identified**
 - **all easements, both by plat and separate instrument**
 - **proposed fencing (if any) and proposed sidewalks (if any)**
- **Elevation plans illustrating all sides**

Please read the following statements and initial next to each line to indicate that you have read, understand and agree to abide by the statement:

_____ I acknowledge receipt of the Village at Ledge Stone Master Covenant, Development Area Declaration, Development Area Declaration and Declaration of Condominium Regime and the Design Guidelines and agree to abide with all in regards to the proposed submittal.

_____ I understand that any contractors I employ are not permitted to place signs anywhere within the subdivision advertising their business. (i.e. This fence is being built by..., etc.)

_____ I understand that greenbelt access is not permitted for construction activity without written permission from the Village at Ledge Stone Reviewer. A formal application and separate deposit must be submitted and approved before greenbelt access would be considered.

_____ I hereby agree not to begin any Improvements until the Village at Ledge Stone Reviewer notifies me of an approval in writing.

_____ I understand that any changes to the approved plans must be re-submitted for approval before the changes are implemented.

_____ I understand that the Village at Ledge Stone is a private subdivision and that any damage to streets, right-of-way, drainage facilities, etc. attributable to the construction activities will be the responsibility of the Homebuilder and/or Owner.

_____ I understand that no authorization has been granted to allow for the surface of any street to be cut within the community without written approval of the Village at Ledge Stone Reviewer.

Authorized Builder Representative

Approval/Denial Notes:

Approval Granted/Denied (Circle One) - Village at Ledge Stone Reviewer:

By: _____

Review Date: _____

ATTACHMENT 2
VILLAGE AT LEDGE STONE: IMPROVEMENT APPLICATION



<http://www.ledgestoneaustin.com/residents.htm>

vlsr@ledgestoneaustin.com

What projects need to be submitted to the Village at Ledge Stone Reviewer?

("Improvements") including, but not limited to, storage sheds, home additions, fencing, fence relocation, fence staining, color changes to the exterior paint, basketball goals, playscapes, decks, arbors, gazebos, swimming pools, spas, hot tubs, playhouses, walls, hardscape improvements, landscaping and exterior alterations.

Steps for Consideration

Please complete this application and submit it with your plans and specifications of the proposed Improvement. No additions, modifications or removal of any Improvement should be made upon any lot without prior written approval of the Village at Ledge Stone Reviewer.

What must accompany this submittal?

Plans and specifications are defined as any and all documents designed to guide or control the construction, installation or maintenance of any Improvement, including, but not limited to, those indicating location, size, shape, configuration, materials, site plans, excavation and grading plans, foundation plans, drainage plans, landscaping and fencing plans, elevation drawings, floor plans, specifications on all building products and construction techniques, samples of exterior colors, plans for utility services, and all other documentation or information relevant to such Improvement.

The plans and specifications to be submitted will be incomplete and not accepted without all of the following items, unless they are either not pertinent to the proposed Improvement or are waived by the Village at Ledge Stone Reviewer. The Village at Ledge Stone Reviewer may require additional information before action on your request.

1. Plot plan/survey showing the location (with measurements noted), dimensions, and elevations of all existing and proposed Improvements.
2. If any appreciable change in the lot contour is possible due to the construction of the improvement, Lot or Condominium Unit drainage provisions shall be indicated, as well as cut and fill details.
3. The structural design, exterior elevations, exterior materials, colors, textures and shapes of all improvements shall be described, along with any diagrams or representations necessary to depict all proposed exterior illumination, including location and method, utility connections and, if proposed, fire protection systems.
4. This form must be completed and signed by the Owner of the Lot or Condominium Unit.

This form can be found at: <http://www.ledgestoneaustin.com/residents.htm>

Owner's Name: _____

Address of Improvements: _____

Please indicate the type of Improvement for which you are requesting approval.

- | | |
|---|--|
| ☐ Outbuilding | ☐ Exterior Color Change |
| ☐ Alteration of existing Improvement | ☐ Removal of existing Improvement |
| ☐ Deck, Arbor, Gazebo | ☐ Swimming Pool, Spa, Hot Tub |
| ☐ Landscaping | ☐ Playscape |
| ☐ Basketball Goal | ☐ Waterfall/Pond |
| ☐ Other _____ | ☐ *Fence/Fence Modification |

*Fencing Note: Check all proposed fencing to be installed.

- ☐ Ornamental Iron Fence
- ☐ Good Neighbor Fence
- ☐ Side Yard Fence

Description of Proposed Improvement:

Fees

Charges for review may be assessed by the reviewer according to the following schedule:

Small project	
Storage shed, deck, arbor, fence, playscape, landscaping	\$ 60.00
Re-submittal	\$ 30.00
Major project	
Swimming Pool, Spa, Home addition/modification	\$140.00
Re-submittal	\$ 70.00

Deposit

A deposit of \$2,500.00 may be required for certain types of construction projects including but not limited to swimming pools and home additions/modifications.

If you are submitting your request via facsimile, please send a photocopy of check in the correct amount with this submittal. The original check must be received within five days (5) or the submittal will be considered incomplete. Review of plans will be completed in a timely manner.

This form can be found at: <http://www.ledgestoneaustin.com/residents.htm>

Please read the following statements and initial next to each line to indicate that you have read, understand and agree to abide by the statement:

_____ I acknowledge receipt of the Village at Ledge Stone Master Covenant, Development Area Declaration, Development Area Declaration and Declaration of Condominium Regime, and the Design Guidelines and agree to abide with all in regards to the proposed submittal.

_____ I understand that any contractors I employ are not permitted to place signs anywhere within the subdivision advertising their business. (i.e. This fence is being built by..., etc.)

_____ I understand that greenbelt access is not permitted for construction activity without written permission from the Village at Ledge Stone Reviewer. A formal application and separate deposit must be submitted and approved before greenbelt access would be considered.

_____ I hereby agree not to begin any Improvements until the Village at Ledge Stone Reviewer notifies me of its approval in writing.

_____ I understand that any substantial changes (IE Generally, changes that would result in a change in elevation, appearance, location, visibility) to the approved plans must be re-submitted for approval before the changes are implemented. If the applicant has any question as to whether a proposed change is considered substantial, the applicant should contact the Village at Ledge Stone Reviewer.

_____ I understand that the Village at Ledge Stone is a private subdivision and that repait of any damage to streets, right-of-way, drainage facilities, etc. attributable to the construction activities will be the responsibility of the Homebuilder and/or Owner.

_____ I understand that no authorization has been granted to allow for the surface of any street to be cut within the community without written approval of the Village at Ledge Stone Reviewer.

Owner Signature

Mailing Address(if different than above)

Email Address (For Expedited Approval)

Contractor (if any)

Contractor Phone

Contractor Contact

Contractor Email Address

Work Phone

Home Phone

Address: _____

Following a review of your submittal, the Village at Ledge Stone Reviewer:

☐ Approves the plans as submitted.

☐ Disapproved your request at this time because of the following reasons or variances from the Association Restrictions and/or guidelines established by the Village at Ledge Stone Reviewer.

☐ Requests the following additional information in order to make a final decision on this Association Restrictions and/or guidelines established by the Village at Ledge Stone Reviewer.

Village at Ledge Stone Reviewer:

By: _____

Review Date: _____

ATTACHMENT 3
LANDSCAPING SPECIFICATIONS

The following are general guidelines approved for The Village at Ledge Stone. All plant material should be drought tolerant and heat resistant. Alternate materials may be approved by the Village at Ledge Stone Reviewer.

Lawns – The entire lawn area (front, side and rear) must be solid sod unless otherwise approved by the Village at Ledge Stone Reviewer, St. Augustine is prohibited. Bermuda Tifway 419 and Zoysia are approved grasses and other recommended drought resistant / heat tolerant varieties will be considered for approval.

Plant Material	Lot	Condominium Unit
-----------------------	------------	-------------------------

Yard Trees (Existing native trees may be counted toward this requirement)

Quantities

Front Yard – 3" Caliper Trees	2	2
Rear Yard – 3" Caliper Trees	0	0
Side Yard Corner Lot - 3" Caliper Trees	4	4

Foundation Planting – Front

Shrubs - 3 to 5 Gallon	18	5
Shrubs/Plants - 1 Gallon	20	10

Acceptable Trees – Alternate trees may be approved by the Village at Ledge Stone Reviewer

Live Oak – Quercus Virginiana
Bur Oak – Quercus Macrocarpa
Chinkapin Oak – Quercus Muhlenbergii
Texas Red Oak – Quercus Texana
Cedar Elm – Ulmus Crassifolia

Notes:

- 1) Side Yard Corner Lot is any Lot or Condominium Unit that has a side yard fronting a street right-of-way
- 2) Trees shall be a minimum of two (2) different species on each Lot or Condominium Unit. Caliper size is measured at four feet (4') above ground.

**** Electronically Filed Document ****

**Hays County Texas
Liz Q. Gonzalez
County Clerk**

**Document Number: 2011-11030432
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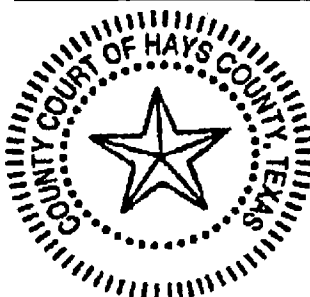
Parties:

**Direct- 290 EAST BUSH INC
Indirect-**

**Receipt Number: 292423
Processed By: Lynn Curry**

***** THIS PAGE IS PART OF THE INSTRUMENT *****

Any provision herein which restricts the Sale, Rental or use of the described REAL PROPERTY
because of color or race is invalid and unenforceable under federal law.



I hereby certify that this instrument was filed for record in my office on the date and time stamped hereon and was recorded on the volume and page of the named records of Hays County, Texas

Liz Q. Gonzalez

Liz Q. Gonzalez, County Clerk